

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
June 11, 2026
8:30 AM/1:30 PM

6. TERRY HEISLER V. GINGER HEISLER

23FL0387

On March 13, 2026, Respondent filed an Order to Show Cause and Affidavit for Contempt (OSC). It was personally served on Petitioner on March 28, 2026.

The parties are ordered to appear for the arraignment.

TENTATIVE RULING #6: THE PARTIES ARE ORDERED TO APPEAR FOR THE ARRAIGNMENT.

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7. DUNIA LANDAVERDE V. ANGEL LANDAVERDE

23FL0394

On April 24, 2026, Respondent filed a Request for Order regarding property control orders. All required documents were served by mail on April 27th.

Petitioner has not filed a Responsive Declaration to Request for Order. However, this RFO reiterates requests that were originally filed ex parte. She did file an opposition to the ex parte on April 23rd.

Respondent asks the court to award him the property located at 3301 Ahwahnee Way in Cool, California. Alternatively, he requests exclusive use and possession of the property within two weeks of the court's order.

The request for sole use and possession of the home is denied. However, the court previously ordered the sale of the subject property. The basis for Respondent's request is that Petitioner is interfering with the ability to sale the home. In furtherance of the court's prior order, the parties are ordered to take no action which would delay, hinder, or otherwise prevent the sale, including actions which would prevent cleaning, repairs, and maintenance or showing of the home. By no later than July 15, 2026, the parties are ordered to list the home for sale and to place a for sale sign in front of the home. Failure to do so will result in daily sanctions for each day the order is not complied with. The selected real estate professional shall choose the listing price, including any amendments thereto, and the parties are to comply with the real estate professional's decision. The parties are ordered to cooperate with the real estate professional to make the home available for showings and to communicate with the real estate professional as needed. The parties are ordered to accept any reasonable offer for the purchase of the home if one is received. The parties are to sign all documents related to the sale of the home in a timely manner. The court reserves jurisdiction over all aspects of the sale and distribution of the net proceeds of the sale, including, but not limited to, the court's authority to direct the clerk to act as elisor for Petitioner's signature if necessary.

Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #7: THE REQUEST FOR SOLE USE AND POSSESSION OF THE HOME IS DENIED. HOWEVER, THE COURT PREVIOUSLY ORDERED THE SALE OF THE SUBJECT PROPERTY. THE BASIS FOR RESPONDENT'S REQUEST IS THAT PETITIONER IS INTERFERING WITH THE ABILITY TO SALE THE HOME. IN FURTHERANCE OF THE